

DPDP 2023

Digital Personal Data Protection Act, 2023

Digital Personal Data Protection Act (DPDP), 2023

User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. :

qwen3-30b/Scenario 1/Digital Personal Data Protection Act (DPDP), 2023

Prepared by :

NyaySahayak

Date :

29 August 2026

NyaySahayak

AI-Powered Legal Intelligence Platform

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 On the stated facts, the immediate wrong is a third-party phishing/fraud attack. The scenario does not establish that the bank or another Data Fiduciary processed or disclosed the victim's personal data unlawfully, or that the bank itself suffered a personal-data breach.

✓ STRENGTHS & RIGHTS

- 1 **Avoiding a forced DPDP citation improves precision where the facts concern a criminal phishing actor rather than Data Fiduciary processing.**

✗ RISKS & OBLIGATIONS

- 1 **DPDP provisions could become relevant if additional facts show unlawful processing, a Data Fiduciary security failure, or a reportable personal-data breach.**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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